Edrak Terms of Service

1. Acceptance of Terms

By accessing or using Edrak's platform ("Edrak"), you agree to be bound by these Terms of Service ("Terms").

If you are using Edrak on behalf of an organization, you represent that you have the authority to bind that organization to these Terms.

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2. Services

Edrak provides a software platform that enables users to access and interact with multiple third-party AI models within a unified, enterprise-controlled environment.

Edrak may modify, update, or enhance the platform at any time without prior notice.

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3. Account Registration and Access

- Users must provide accurate and complete information when creating an account
- Customers are responsible for maintaining the confidentiality of account credentials
- Customers are fully responsible for all activities conducted under their accounts

Edrak is not liable for unauthorized access resulting from customer failure to secure credentials.

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4. Customer Responsibilities

Customers agree to:

- Use Edrak in compliance with applicable laws and regulations, including those of the Kingdom of Saudi Arabia
- Ensure that their users comply with these Terms and internal policies
- Not use the platform for unlawful, harmful, or abusive purposes

Customers remain solely responsible for all inputs, outputs, and decisions made using Edrak.

5. Acceptable Use

Use of Edrak is subject to the Acceptable Use & Platform Integrity section outlined in the Privacy & Data Governance Policy.

Any violation may result in suspension or termination of access.

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6. Third-Party Services

Edrak integrates with third-party AI providers.

- Such services are governed by their own terms and policies
- Edrak does not control and is not responsible for third-party systems, outputs, or availability
- Use of third-party models is at the customer's own risk

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7. Intellectual Property

- Edrak retains all rights, title, and interest in its platform, software, and underlying technology
- Customers retain ownership of their data, inputs, and outputs, subject to applicable law

No rights are granted except as expressly stated in these Terms.

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8. Fees and Payment

- Access to Edrak is provided on a subscription basis, as agreed with the customer
- Fees are billed in advance and are non-refundable unless otherwise agreed in writing
- Failure to pay may result in suspension or termination of access

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9. Availability and Service Levels

Edrak will use commercially reasonable efforts to ensure platform availability.

However, Edrak does not guarantee uninterrupted or error-free operation and shall not be liable for downtime or service interruptions.

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10. Suspension and Termination

Edrak may, at its sole discretion:

- Suspend or terminate access for violations of these Terms
- Restrict access where required for security, legal, or operational reasons

Customers may terminate their use of Edrak in accordance with their subscription terms.

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11. Disclaimer of Warranties

Edrak is provided on an “as is” and “as available” basis.

To the fullest extent permitted by law, Edrak disclaims all warranties, including:

- Accuracy or reliability of outputs
- Fitness for a particular purpose
- Continuous or error-free operation

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12. Limitation of Liability

To the fullest extent permitted by law:

- Edrak shall not be liable for any indirect, incidental, or consequential damages
- Edrak shall not be liable for:
    - Customer use of AI-generated outputs
    - Decisions or actions taken based on outputs
    - Third-party services or integrations

Edrak’s total liability shall not exceed the fees paid by the customer in the preceding 12 months.

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13. Indemnification

Customers agree to indemnify and hold harmless Edrak from any claims, damages, or liabilities arising from:

- Misuse of the platform
- Violation of these Terms
- Breach of applicable laws or third-party rights

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14. Governing Law and Jurisdiction

These Terms shall be governed by and construed in accordance with the laws of the Kingdom of Saudi Arabia.

Any disputes shall be subject to the exclusive jurisdiction of the competent courts in Saudi Arabia.

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15. Changes to Terms

Edrak may update these Terms from time to time.

Continued use of the platform constitutes acceptance of the updated Terms.

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16. Entire Agreement

These Terms, together with the Privacy & Data Governance Policy, constitute the entire agreement between Edrak and the customer.